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File No: EXP202302764

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 8, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202302764

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

SOM 2011, S.L. (hereinafter, the claimant or SOMPRODUCE) filed a complaint with the Spanish Agency for Data Protection on January 30, 2023. The complaint is directed against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the respondent or BBVA). The reasons on which the complaint is based are as follows:

I.

That SOMPRODUCE is a client of the BBVA entity.

II.

That BBVA sends commercial communications via email to SOMPRODUCE at its ***CARGO (A.A.A.) through its corporate email (**EMAIL.1).

III.

That from this email address, the option to "unsubscribe" has been repeatedly marked to stop receiving commercial emails as it is an additional purpose to the main one of their relationship as a client.

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IV.

That SOMPRODUCE raised a rights protection exercise before the AEPD in April 2022 (...)

V.

That a response was received from the financial entity BBVA justifying the sending of communications as a technical error and committing to cease sending commercial communications in July 2022. (...)

VI.

That the AEPD responded to this request (File No: ***EXP.1) not admitting the complaint for processing because "Once the reasons presented by the respondent, which are in the file, have been analyzed, this Agency considers that the requested right has been addressed. (...)

VII.

That commercial communications continue to be received via email despite the communication from BBVA indicating its commitment to cease communications and the AEPD's assessment that the right had been addressed. (...)

Along with the complaint, the following documentation is provided:

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Documentation related to a previous complaint before the AEPD dated April 26, 2022.

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Letter from BBVA dated July 1, 2022, in which it informs the claimant that the sending of commercial

communications to the reference email had not ceased due to a systems error and in which it states that the banking entity has taken all necessary and appropriate measures to prevent new sends in the future.

□

Resolution from the AEPD dated July 22, 2022, of non-admission for processing of the raised complaint.

□

Commercial communications from BBVA received on July 23, 2022, September 24, 2022, October 25, 2022, and January 27, 2023.

□

Special power of attorney.

THIRD: On March 6, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of the

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digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures." Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Prohibition of unsolicited or expressly authorized commercial communications

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood to mean any unsolicited message that typically aims to offer, market, or try to generate interest in a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. The LSSI, in its Article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients." That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient; however, this prohibition finds its exception in subsection 2 of the aforementioned Article 21, which authorizes the sending of commercial

communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer." Thus, the sending of unsolicited commercial communications, outside the aforementioned assumption...

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exceptional of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI. As noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as an information society service and defined in its Annex as follows:

"f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, shall not be considered commercial communication, nor shall communications related to the goods, services, or image offered when they are prepared by a third party and without economic compensation."

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Information Society Service" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of information society service also includes services that are not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

The following are considered information society services, among others, and provided they represent an economic activity:

1. The contracting of goods or services by electronic means.
2. The organization and management of auctions by electronic means or of markets and virtual shopping centers.
3. The management of online purchases by groups of people.
4. The sending of commercial communications.
5. The provision of information by telematic means."

Therefore, the sending of commercial communications is an information society service, as long as it represents an economic activity.

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, an information society service."

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III

Unfulfilled Obligation

Title VII of the LSSI under the heading "Infringements and Sanctions" contains the sanctioning regime applicable in the event that any of the infringements contained in the table of infringements included therein occur.

Specifically, Article 37 specifies that providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them.

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person who provides an information society service.”

In this case, the party being claimed would be a provider of information society services.

For its part, the claiming party would have continuously received commercial communications from BBVA from July 23, 2022, until at least January 27, 2023, despite having expressed that it did not wish to continue receiving commercial or advertising communications at the corporate email account (**EMAIL.1) and despite the letter from BBVA dated July 1, 2022, in which it was implied to the claiming party that the banking entity had taken the necessary measures to prevent the future sending of commercial communications to the aforementioned corporate email account.

Below is part of the content of said letter: (the underlining is ours)

“However, as you convey in your letter, Law 34/2002 on Information Society Services and Electronic Commerce, establishes in its Article 21, the right of the recipient to oppose the processing of their data for promotional purposes and the obligation of the provider to implement a simple and free procedure. By virtue of the aforementioned regulation, we inform you that BBVA has taken all necessary and appropriate measures to prevent in the future the sending of commercial communications to the email address

***EMAIL.1.

We inform you that after conducting the appropriate investigations regarding what occurred and thanks to the evidence provided by you, it has been verified that the sending of commercial communications to the reference email had not ceased due to an error in the systems.

It is for this reason that we at BBVA extend our sincerest apologies for what occurred and any inconvenience this may have caused you.”

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IV

Classification of the infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that BBVA has sent numerous commercial communications to the claimed party's corporate email account (**EMAIL.1) without due diligence, repeatedly, despite:

- That the claiming party had opposed the processing of their data for promotional purposes, informing BBVA that they did not wish to continue receiving such advertising communications at the aforementioned corporate email account.

- That said banking entity, by letter dated July 1, 2022, had indicated to the claiming party that the sending of commercial communications to the reference email had not ceased due to an error in the systems and had assured them that it had taken all necessary and appropriate measures to prevent the sending of commercial communications to that address from occurring again in the future.

The known facts could constitute an infringement, attributable to the claimed party, for violation of Article 21 of the LSSI, which states the following: (the underlining is ours)

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data

for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

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V

Qualification of the infringement

In accordance with the provisions of Article 38, section 4 of the LSSI, the following are considered minor infringements:

“4. Minor infringements are:

d) The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement.”

Consequently, the infringement of Article 21 of the LSSI, in the terms indicated by the aforementioned Article 38.4.d), is generally classified as a minor infringement, although if a mass sending of unsolicited commercial communications to different recipients occurs or if it is sent insistently or systematically to the same recipient, in the terms indicated in the also cited Article 38.3.b), a serious infringement will occur for the purposes of the LSSI.

This infringement may be sanctioned with a fine of up to 30,000 euros, in accordance with Article 39.1

c) of the LSSI, which stipulates the following:

“1. For the commission of the infringements set forth in the previous article, the following sanctions shall be imposed:

(...)

c) For the commission of minor infringements, a fine of up to 30,000 euros.”

VI

Proposal for sanction

Likewise, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established by Article 40 of the LSSI:

“The amount of the fines imposed shall be graduated taking into account the following criteria:

a) The existence of intent.

b) The length of time during which the infringement has been committed.

c) Recidivism for the commission of infringements of the same nature, when declared by a firm resolution.

d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of billing affected by the committed infringement.

g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

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As aggravating factors:

b) The period during which the infringement has been committed.

From the documentation provided by the claimant, along with the complaint, it follows that the company has received commercial communications from BBVA from July 23, 2022, until at least January 27, 2023, despite the claimant having opposed the processing of their data for promotional purposes, stating to BBVA that they did not wish to continue receiving such advertising communications at the corporate email account (***EMAIL.1).

In this regard, it is noteworthy that in a letter dated July 1, 2022, BBVA assured the claimant that it had taken all necessary and appropriate measures to prevent unwanted commercial communications from continuing to be received at the aforementioned corporate email account.

The amount of the fine that would correspond, without prejudice to what results from the instruction of the procedure, is €5,000 (five thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, for the alleged infringement of Article 21 of the LSSI, classified under Article 38.3.d) of the LSSI.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 21 of the LSSI, classified under Article 38.3.d) of that regulation, an administrative fine of €5,000.00 (five thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000.00 (four thousand euros), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000.00 (four thousand euros) and its payment will imply the termination of the procedure.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000.00 (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above

(€4,000.00 (four thousand euros) or €3,000.00 (three thousand euros), it must be made effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Sub-Directorate for Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and, in
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As a consequence, the file of proceedings; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that pursuant to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 24, 2023, the respondent has proceeded to pay the fine in the amount of 3000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302764, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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